IN THE HIGH COURT OF JUSTICE
BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES
COMMERCIAL COURT (KBD)

Claim No. CL-2026-000204

B E T W E E N :

CASPIAN TECHNOLOGIES LIMITED

Claimant

- and -

HARBURN UTILITIES PLC

Defendant

PARTICULARS OF CLAIM

The Parties

1. The Claimant, Caspian Technologies Limited ("Caspian", company number 09784512), is a company incorporated in England and Wales which develops and licenses CarbonLedger, a cloud-based carbon-accounting and emissions-analytics platform used by large energy and utility enterprises.

2. The Defendant, Harburn Utilities plc ("Harburn", company number 03217788), is a regional electricity and gas distribution and supply business operating in central Scotland and the north of England.

The Master SaaS Agreement

3. By a written Master Software-as-a-Service Agreement dated 4 March 2024 (the "Agreement"), Caspian agreed to grant Harburn a subscription to the CarbonLedger platform together with implementation and support services, for an initial term of three years from 1 April 2024 expiring on 31 March 2027.

4. It was an express term that Harburn would pay a one-off implementation fee of £120,000, an annual subscription of £540,000 for up to 750 named users, and certain usage and professional-services charges, with undisputed invoices payable within 30 days (clause 7.3).

5. By Schedule 3 (the Service Level Agreement), Caspian warranted availability of not less than 99.8% per month, the sole and exclusive remedy for any shortfall being service credits capped at 10% of the monthly subscription proportion (clause 9.2; Schedule 3, paragraph 5).

6. By clause 14.2, termination for material breach required 30 days' written notice to remedy a remediable breach. By clause 9.4, each party's aggregate liability was capped at 150% of the fees paid or payable in the preceding 12 months, save in respect of payment obligations, fraud, and death or personal injury.

Performance, Go-Live and unpaid invoices

7. Caspian duly performed its obligations. The platform was released for user-acceptance testing on 12 June 2024 and went live on 1 July 2024, Harburn's Ms Fiona Drummond signing the Go-Live Acceptance Certificate that day. Availability was at least 99.83% in every month from July 2024 to June 2025 and no service-credit claim was ever made.

8. The following invoices fell due and remain unpaid: INV-2025-0412 (£540,000), INV-2025-0061 (£45,000), INV-2024-0733 (£60,000) and INV-2025-0218 (£24,000), totalling £669,000.

Wrongful termination and loss

9. By letter dated 8 August 2025 Harburn purported to terminate the Agreement with immediate effect for alleged material breach of the SLA. No notice under clause 14.2 had been served and the matters alleged did not constitute a material breach. In so far as the July 2025 connector incident is relied upon, it arose from Harburn's own rotation of its SCADA API credentials without notice, was remedied promptly, and did not affect data integrity.

10. The purported termination was a repudiation, which Caspian accepted by its solicitors' letter dated 1 September 2025. Caspian has thereby lost the net subscription revenue it would have earned over the remaining 19 months of the term, quantified after credit for avoided costs (11% of subscription revenue) in the Schedule of Loss at £760,950.

11. Caspian also claims contractual interest under clause 7.5, alternatively under section 35A of the Senior Courts Act 1981.

AND THE CLAIMANT CLAIMS

1. The sum of £669,000 by way of debt, alternatively damages, in respect of the unpaid invoices;

2. Damages for wrongful repudiation in the sum of £760,950;

3. Contractual interest under clause 7.5, alternatively under section 35A of the Senior Courts Act 1981;

4. Further or other relief; and

5. Costs.

HARRIET STANFORD

Eldon Chambers

Statement of Truth. The Claimant believes that the facts stated in these Particulars of Claim are true. The statement of truth is signed by Sofia Trevino, General Counsel, duly authorised by the Claimant, on 24 February 2026.

Whitfield Carter LLP, 22 Bishopsgate, London EC2N 4BQ — Solicitors for the Claimant. Ref: SW/JO/CASP-204.